

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Connors	Team: Squad #13	CCRB Case #: 201509968	☐ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Tuesday, 11/17/2015 3:57 PM	Location of Incident: Northern Boulevard and Bell Boulevard	18 Mo. SOL 5/17/2017	Precinct: 111
Date/Time CV Reported Mon, 11/23/2015 1:56 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 11/23/2015 1:56 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Clinton Wike	00005	935967	111 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Clinton Wike	Off. Language: PO Clinton Wike made remarks to § 87(2)(b) based upon race.	A . Unsubstantiated

Case Summary

On November 17, 2015, at approximately 3:57 p.m., § 87(2)(b) was driving in his 2014 red Sahara jeep eastbound along Northern Boulevard in Queens. PO Clinton Wike of the 111th Precinct was parked on the south-east corner of Northern Boulevard and Bell Boulevard where he was assigned to Highway Safety. PO Wike observed § 87(2)(b) with his left hand on the steering column and using his cell phone with his right hand. PO Wike pursued § 87(2)(b) with his lights and sirens on. § 87(2)(b) pulled over to the curb on the right hand side of Northern Boulevard approximately twenty to thirty feet from the intersection. Three to four minutes after initiating the stop, PO Wike exited from his vehicle and approached § 87(2)(b) in his vehicle by the driver's side door and asked for § 87(2)(b)'s license and registration. § 87(2)(b) complied. PO Wike went back to his vehicle and then returned approximately three to four minutes later with § 87(2)(b)'s license, registration and a summons. PO Wike told § 87(2)(b) "I'm giving you a ticket for pushing buttons on an electronic device that is on your seat." § 87(2)(b) replied, "How can you see an electronic device on my seat?" PO Wike replied, "I saw it through your side view mirror." § 87(2)(b) replied, "Why don't you arrest a bad man?" PO Wike replied, "You're the bad man!" and "cracker" (**Allegation A**). After summoning § 87(2)(b) PO Wike began to walk back to his vehicle when § 87(2)(b) called him a racist. PO Wike then stopped and screamed unintelligibly at § 87(2)(b) for a few seconds while standing in the street approximately four to five feet behind § 87(2)(b)'s vehicle. § 87(2)(b) could not hear what PO Wike said because of noise generated by other vehicles driving along Northern Boulevard. Afterwards PO Wike returned to his vehicle and left. There was no further interaction between PO Wike and § 87(2)(b).

Mediation, Civil and Criminal Histories

- § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- As of March 10, 2016, a query to The New York City Comptroller's Office has been made in regards to any Notice of Claim filed by § 87(2)(b). It will be added to the case file upon receipt (**Board Review 01**). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (**Board Review 03**).
- PO Clinton Wike has been a member of service for eleven years and has three prior CCRB allegations from one previous case. PO Wike has previously been the subject of one threat of summons allegation, one threat of force allegation and one discourtesy allegation. All three allegations were closed as complainant uncooperative (**Board Review 04**).

§ 87(2)(g)

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Findings and Recommendations

Allegation A –Offensive Language: PO Clinton Wike made remarks to § 87(2)(b) based upon race.

It is undisputed that PO Clinton Wike stopped § 87(2)(b) in his vehicle to issue him a summons for using his phone while driving. § 87(2)(b) argued with PO Wike and disputed the summons issued to him for using an electronic device while driving. § 87(2)(b) reported that PO Wike could not have seen that he was using an electronic device. § 87(2)(b) reported that he told PO Wike to go and arrest a bad man. PO Wike allegedly called § 87(2)(b) a “cracker” (**Board Review 05**).

§ 87(2)(g) PO Wike reported that he could not independently recall this vehicle stop nor did he remember § 87(2)(b). As part of his statement, PO Wike referred to and read aloud a copy of the summons issued to § 87(2)(b). During the vehicle stop, PO Wike reported he did not remember if § 87(2)(b) made any verbal statements after handing over his identification. PO Wike reported he did not remember if § 87(2)(b) made any statements after receiving the summons. PO Wike did not remember if § 87(2)(b) disputed the summons. PO Wike reported he did not have a discussion with § 87(2)(b) regarding his cell phone use or any electronic device. PO Wike reported he did not remember seeing § 87(2)(b)'s cell phone or electronic device on his person or within his vehicle during the incident. PO Wike reported he did not remember if he had any further conversations outside of issuing the summons to § 87(2)(b). PO Wike denied calling § 87(2)(b) a “cracker” (**Board Review 06**). PO Wike reported he did not remember if § 87(2)(b) made any comments about his race and that he did not remember § 87(2)(b) at all.

§ 87(2)(g)

§ 87(2)(b), it is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

